GENERAL LEARNING OUTCOMES

Students would be able to:

1. Demonstrate a clear understanding of the laws applicable to

a) The transfer of properties;

b) Administration of estates in Nigeria and apply the relevant laws to given cases;

2. Take instructions from clients on the conveyancing approach they want;
3. Conduct investigation of title to land and give advice or write appropriate search report;
4. Demonstrate clear understanding of the various steps or procedure to perfection of title to land and a clear understanding of the principles affecting documents of transfer of title to land and apply them to specific cases;
5. Draft appropriate or suitable land documents to meet clients specification, and to professional standard;
6. Give opinion on the best legal option available to a client in specific cases;
7. Have a clear understanding of the various forms of transactions affecting land in Nigeria;
8. Apply principles of law to covenants in a lease, mortgage, and assignment of leases in a given case;
9. Take instructions from a client for the preparation of a Will and be able to draft the Will to professional standards;
10. Demonstrate a clear understanding of the conditions for validity and revocation of Wills;
11. Apply the principles on validity and revocation of a Will to given cases;
12. Commence the process of obtaining probate and letters of administration;

13. Identify the duties and liabilities of personal representatives and the steps to take in winding upof an estate and,
14. Demonstrate a clear understanding of laws relating to property taxation in Nigeria.

WEEK 3 – GENERAL OVERVIEW ANDAPPLICABLE LAWS

Outcomes:
At the end of the lesson, students would be able to:

1. Explain the objectives, content, and scope of this course
2. Explain various transactions affecting land, the laws and the documents needed for the transactions in property law practice.
3. Apply the applicable laws to the given cases.
4. Identify ethical issues arising from a lack of knowledge of appropriate law and transaction.

Contents

1. Overview of the Property Law Practice (Module) Course
2. Explain the purpose or role of Real Estate Investment Trust
3. Laws applicable to property transactions, Administration of estates and property taxation in Nigeria.
4. **A brief mention and explanation of the Real Estate Investment Trusts.**
5. Ethical Issues under the Legal Practitioner Remuneration Order 2024

Class Activities

1. The tutor presents an overview of transactions affecting land, the laws and the documents needed for the transactions in property law practice. - 1:30 minutes.
2. Student groups discuss and draw up a list of transactions affecting land and applicable laws – 10 minutes

3. Sample presentation by groups of students – 20 minutes.
4. Tutor presents an overview of applicable laws transactions on land, administration of estates, and property taxation in Nigeria.

30 Minutes Break

5. The tutor presents Case Study on a PowerPoint, along with questions and exercises - 15 minutes.
6. Students' groups discuss and list answers to the questions - 20 minutes
7. Groups present sample presentations and compile a list of transactions arising from the case studies. A list of applicable laws is also compiled, taking approximately 25 minutes.
8. Student groups identify ethical issues arising from knowledge or lack of the appropriate law and transaction -20 minutes.
9. Group sample presentation of ethical issue identified– 15 minutes
10. Assessment and Evaluation - 25 minutes.

WEEK 3 - PROPERTY LAW PRACTICE

OVERVIEW & LEGAL FRAMEWORK

OUTCOMES

- EXPLAIN THE OBJECTIVES, SCOPE & CONTENT OF THE PLP COURSE
- EXPLAIN VARIOUS TRANSACTIONS AFFECTING LAND, THE DOCUMENTS AND LAWS APPLICABLE TO TRANSACTIONS IN PLP
- APPLY THE APPLICABLE LAWS TO GIVEN CASES
- IDENTIFY ETHICAL ISSUES THAT MAY ARISE FROM LACK OF KNOWLEDGE OF APPROPRIATE LAW AND TRANSACTION

CONTENT

1. Overview of the Property Law Practice Course
2. Laws applicable to property transactions, administration of estates and property taxation in Nigeria.
3. Real Estate Investment Trusts
4. Ethical Issues under the Rules of Professional Conduct, 2023

Introduction

What does "Property Law Practice" entail?

- ❑What is "Conveyancing"?
- ❑Any distinction between "Conveyancing" and a "Conveyance"?

APPLICABLE LAWS

- Three Jurisdictions in Nigeria:
  - Conveyancing Acts (1881 & 1882) States
  - Property & Conveyancing Law (1959) States
  - Lagos State

- The Constitution of the FRN,1999 (as amended)
- Land Use Act, 1978
- Land Instruments Registration Law (of the various States)
- Conveyancing Acts, 1881 & 1882
- Property & Conveyancing Law, 1959

- Land Registration Law, 2015(Lagos)
- Wills Act, 1837, Wills Law (Lagos)
- Administration of Estates Law of Lagos State
- Stamp Duties Act, 2004
- Illiterate Protection Act/Laws

- Land Instruments Preparation Laws
- Company Income Tax Act; Personal Income Tax Act
- Statute of Frauds, 1677; the Law Reform(Contracts) Law of Lagos State
- High Court Civil Procedure Rules (Abuja 2025 & Lagos 2019)

- Capital Gains Tax Act, 2004 (as amended)
- Company and Allied Matters Act, 2020
- Rules of Professional Conduct for Legal Practitioners in the Legal Profession, 2023

- Legal Practitioners Act
- Mortgage Institutions Act
- Finance Act, 2019, 2023
- Lagos State Tenancy Law, 2011
- Evidence Act, 2011
- Town Planning Laws
- (students to generate more)

TRANSACTIONS AFFECTING LAND

–SALE OF LAND
–DONATION OF POWER
–LEASES
–MORTGAGES
–WILLS

– ADMINISTRATION OF ESTATES: Probate & Personal Representatives

– PROPERTY TAXATION
– REITs

DOCUMENTS AFFECTING INTEREST IN LAND

- DEEDS
- POWER OF ATTORNEY (simple or Deed)
- CONTRACTS/AGREEMENTS
- PROBATE/LETTERS OF ADMINISTRATION
- ASSENT

PROCEDURE FOR PERFECTION OF TITLE

–Consent
–Stamping
–Registration

ETHICAL DUTIES

STUDENTS TO GENERATE using the LPA & RPC as guides

ETHICAL BREACHES

- Any violation of the provisions of the LPA &RPC
- Negligence - Lawson v Siffre & anor (1938) 11 NLR, 113
- Lack of knowledge of applicable Law & transaction/document - Olofuntuyi v Barclays Bank [1965] NMWL, 142
- What of pro bono cases?

ETHICAL BREACHES – CONSEQUENCES

- Client may bring an action for negligence against the L.P. and if found guilty, may be liable in damages, refund of monetary expenses incurred or expended as a result of a wrong advise given or the client's reliance on his legal expertise.

- Disciplinary measures may be taken against him and in severe cases, the L.P.'s name will be struck off the roll.

  SS. 9, 10 & 11 LPA; Rule 74 RPC - (NBAAMLC)

  Duty of every LP to report any breach of the RPC – Rule 74(3)

CASE STUDY